



टेलीकम्युनिकेशन्स कंसलटेंट्स इंडिया लिमिटेड
(भारत सरकार का उद्यम)
Telecommunications Consultants India Limited
(A Government of India Enterprise)



प्रभाग
DIVISION

टी. सी. आई. एल. भवन, ग्रेटर कैलाश-I
नई दिल्ली-110048

TCIL Bhawan, Greater Kailash-I,
New Delhi-110048

CIN : U74999DL1978GO1008911

No. TCIL/SR/HYD/2024/T-Fiber/Exe (Vol-XII)

Dated: 20-05-2024

TO WHOM IT MAY CONCERN
EXPERIENCE CERTIFICATE

This Experience Certificate is issued to **M/s Quadgen Wireless Solutions Private Limited** on their specific request only vide letter QG/Corp/2024-25/003 dated 16/04/2024 as per details given below:

S. No.	Item	Description
1.	Name of Agency / Vendor	M/s QuadGen Wireless Solutions Private Limited.
2.	Name of Work / Project	Implementation of Package-C of Telangana Fiber Grid Project (T-FIBER) in the State of Telangana by Telangana Fiber Grid Corporation Limited
3.	Project Location	Telangana State - Package-C covering 10 Districts (Adilabad, Asifabad, Mancherial, Nirmal, Nizamabad, Kamareddy, Karimnagar, Rajanna Sircilla, Jagityal and Peddapalle).
4.	Client's Name	Telecommunications Consultants India Limited. (TCIL) for Telangana Fiber Grid Corporation Ltd. (T-Fiber), Telangana
5.	Type of work	Route Survey, Design, Planning of Network Architecture, Designing the solution, Finalization of BoQ, OFC Laying work, installation, testing and commissioning of active equipment, integration of different networks as well as integration with NOC, Operations and Maintenance of the end-to-end network infrastructure.
6.	TCIL's LOI / PO / WO No with Date	TCIL/15/1860/I/19-MM/75P dated 17.01.2020. TCIL/15/1860/1/19-MM/75P/AO-1 dated 13.10.2021 TCIL/15/1860/I/19-MM/75P/AO-2 dated 17.02.2022. TCIL/15/1860/I/19-MM/75P/AO-3 dated 21.04.2023. TCIL/15/1860/I/19-MM/75P/A-3A dated 04.07.2023.
7.	TCIL's LOI/ PO / WO Amount without GST	Rs 913,80,01,701/- (Rs Nine Hundred Thirteen Core Eighty Lakhs One Thousand Seven Hundred and One Only) for Phase -I including O&M.
8.	TCIL's LOI/ PO / WO Amount with GST	Rs 1078,28,42,007/- (Rs One Thousand Seventy Eight Crores Twenty Eight Lakhs Forty Two Thousand Seven only) for Phase -I including O&M.
9.	Date of commencement of work	22-01-2020
10.	Duration of work/ project	15 Months (Execution) and 7 Years (O&M)
11.	Actual Date of Completion	Ongoing - 2206 GPs Lit-up completed, 3.5 Districts are Live and under O&M. Scope of work: • GPs to connect = 3057 • Mandals to connect = 182

S. No.	Item	Description
		- Govt Institutes to connect = 7365 Work completed till date: - OFC laying = 7915 Km - Routers Installed = 659 - Metro Switches Installed = 643 - OLTs (16P) Installed = 264 - OLTs (8P) Installed = 340 - ONTs Installed = 3362
12.	AMC period	7 Years (O&M) Presently performing O&M for 2153 route Kilometers covering 818 GPs across 91 Mandals since 16-07-2022.
13.	Value of work done till date including LD / Penalty without GST	Rs 652,20,04,194/- (Rs. Six Hundred Fifty Two Crores Twenty Lakhs Four Thousand One Hundred Ninety Four only)
14.	Value of work done till date excluding LD / Penalty without GST	Rs 652,20,04,194/- (Rs. Six Hundred Fifty Two Crores Twenty Lakhs Four Thousand One Hundred Ninety Four only)

Note:

- 1) This Experience Certificate is not a declaration or confirmation of any final payment made by TCIL to the said vendor. TCIL reserves the right to withhold or deduct any amount pertaining to penalty / LD / taxes etc., which may be found applicable, from any payments to be made to the vendor from time-to-time in future or at the time of full & final settlement.
- 2) This Letter of Experience is being issued upon specific request from M/s QuadGen Wireless Solutions Private Limited for participating in the BSNL released amended BharatNet Tender only.


 Sanjay Kumar
 CGM (SCM)



Telecommunications Consultants India Ltd.
(A Govt. of India Enterprise)
Material Management Division
TCIL Bhawan, GK-I, New Delhi – 110 048
Telephone no.:011-26202020, Fax:011-26241865
Website: www.tcil.net.in
CIN No.: U74999DL1978GOI008911



TCIL/15/1860/I/19-MM/75P/AO-3A

04.07.2023

AMENDMENT-3A TO LETTER OF AWARD

M/s QUADGEN Wireless Solutions Private Limited (QUADGEN)

#607, World Trade Center, Brigade Gateway
No. 26/1 Dr. RajKumar Road, Mallesaram West,
Banagalore-560055, India

Kind Attention: Mr. Satish Benarji, COO

Dear Sir,

Sub: Implementation of Package-C of Telangana Fiber Grid Project (T-FIBER) in the State of Telangana by Telangana Fiber Grid Corporation Limited (T-FIBER LTD.)

- Ref:
- 1) RFP documents vide TSTS/CS/RFP-T-FIBER-MSI/2018 dated 20.03.2018 along with its corrigendum, addendums & errata.
 - 2) TCIL EOI No. TCIL/TG/044/2018/1/MSI-Telangana dated 17.05.2018 along with its corrigendum, addendums & errata.
 - 3) M/s QUADGEN's offer in a consortium bid with M/s CEIBA ECC Private Limited and M/s EMC Limited against TCIL's EOI for the subject tender, submitted vide email dated 17.09.2018.
 - 4) QUADRIPARTITE AGREEMENT dated 19.09.2019 signed among TCIL, QUADGEN, CEIBA ECC Pvt. Limited (CEIBA) and EMC Limited (EMC).
 - 5) M/s QUADGEN's revised price vide email dated 14.02.2019 based on L1 Price of M/s L&T.
 - 6) Signed MoM of meeting held on 05.12.2019 between T-FIBER LTD. & TCIL
 - 7) M/s QUADGEN's letter dated 29.12.2019 regarding undertaking for project phased approach & confirmation on validity of prices for 3 years.
 - 8) M/s QUADGEN's letter dated 31.12.2019 regarding price validity undertaking letter & acceptance of MoM for meeting held on 05.12.2019.
 - 9) TCIL Letter No. TCIL/76/001/IT-OFC/02/2019-20 dated 07.01.2020 for acceptance to T-Fiber LOA.
 - 10) TCIL LOA dated 17.01.2020 to M/s QUADGEN with its AO-1 dated 13.10.2021, AO-2 dated 17.02.2022 and AO-3 dated 21.04.2023.
 - 11) T-Fiber LOA dated 31.12.2019 with its Amendment-I dated 26.04.2021, Amendment-II dated 30.12.2021, Amendment-III dated 28.03.2023 and Amendment-IIIA dated 18.05.2023.
 - 12) TCIL Letter No. TCIL/15/PBG-Extn./MM/23-24/QWSPL/07 dated 12.06.2023.

Dear Sir,

1. LOA Amendment-3 was issued on back-to-back basis of LOA Amendment-III by T-Fibre, wherein new line items were added as per requirement of the project.

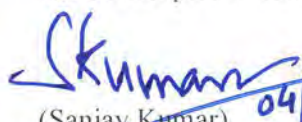
2. The client (T-Fibre), during processing of invoices, observed that Sl. No. in the LOA Amendment-II and III have some variations and has issued Amendment-IIIA after corrections in such Sl. Nos.
3. All other terms & conditions mentioned in AO-3 dated 21.04.2023 remain unchanged, including scope of work, deliverables, timelines, and financial provisions. This amendment solely focuses on amending the serial numbers without any financial implication to ensure clarity and accuracy in billing process.

4. **Contract Price:**

Subsequent to AO-3 dated 21.04.2023, the contract price to carry out the work as per scope of T-Fiber project's Package-C is **Rs. 913,80,01,701/- (Rupees Nine Hundred Thirteen Crore Eighty Lakh One Thousand Seven Hundred one only)**, all-inclusive except GST, as per enclosed Annexure-1.

5. M/s QUADGEN is yet to submit the revised Performance Security, as per AO-3 terms & conditions (10% of CAPEX Value, amounting to Rs. 70,00,20,424/-). It is requested that M/s QUADGEN submit the revised performance security of value **Rs. 70,00,20,424/-** valid up to **31.12.2023**, latest by 12.07.2023 as per TCIL letter reference cited at 12 above.

The copy of this Amendment-3A to LOA duly stamped and signed by the authorized person be returned within 2 days of issuance of this LOA as a token acceptance of this LOA, failing which it will be presumed that this LOA has been accepted in total.


(Sanjay Kumar) 04/07/2023
Chief General Manager (SCM)

Encl: Revised Annexure 1 - BOQ & Price

Copy To:

1. ED (IT&T-III), TCIL
2. CGM (F&A), TCIL
3. Master File
4. Office copy

Annexure 1 (BOQ and Price) -LOA Amendment - 3

S. No	Item Description	Unit	AO-3 Qty	Unit Cost (INR)	AO-3 cost(INR)
	SHQ to GP				
B.1	Physical Survey				
1	Physical Survey of route, capturing the latitude- longitude of optical fiber cable route , route & joint indicator, preparation of GIS survey reports , integration of GIS data with as build diagram of OFC route -From SHQ till GP	Km	11,048		
2	Physical Survey of route, GP & Testing for taking over for NOFN Phase – I @ 2.25 kms (on average) per PoP	No.	729		
3	DGPS Survey in Forest Area	Km	787		
B.2	Optical Fiber Cable				
1	Optical Fiber Cable 288 Core - Underground	Km	371		
2	Optical Fiber Cable 144 Core - Underground	Km	868		
3	Optical Fiber Cable 96 Core - Underground	Km	2,270		
4	Optical Fiber Cable 48 Core - Underground- Linear Portion	Km	7,761		
5	ADSS OFC 48 Core - For Ring Completion	Km	537		
6	Drop Cable 2 Core(Oval type) for Govt. Institution Connectivity	Km	7,905		
B.3	Underground OFC Accessories				
1	HDPE PLB Duct (40 mm / 33mm)	Km	4,706		
2	DWC Pipe (75/61 mm) @ 50Mtr per Km	Km	364		
3	GI Pipe 50mm - Class-B Medium as per ISI Mark@60 mtr per Km	Km	37		
4	Supply of Route / joint indicator	No	13,943		
5	Supply of Manhole & Joint chambers	No	12,766		
6	Supply of FDMS outdoor (Joint Closure) for 288 Core Fiber	No	473		
7	Supply of FDMS outdoor (Joint Closure) for 144 Core Fiber	No	843		
8	Supply of FDMS outdoor (Joint Closure) for 96 Core Fiber	No	1,930		
9	Supply of FDMS outdoor (Joint Closure) for 48 Core Fiber	No	4,583		
B.4	ADSS OFC Accessories				
1	Formed OFC Dead End & Termination Fittings @ 5 per Km (Wedge Type)	Set	2,457		
2	Formed OFC Dead End & Termination Fittings @ 5 per Km (Helix Type)	Set	613		
3	OFC Suspension Fittings @ 15 per Km (Wedge Type)	Set	7,370		
4	OFC Suspension Fittings @ 15 per Km (Helix Type)	set	1,825		
5	De-mountable pulley @ 1 per 10 Km	No	122		
6	Adjustable Cable Storage Bracket @ 3 per Km	Set	1,814		
7	Galvanized steel poles of tubular in design and swaged of the length 7 meters, with top cap welded and lightning spike and including MUFF @ 15 per Km.	No	3,564		
8	Galvanized steel poles of tubular in design and swaged of the length 8 meters, with top cap welded and lightning spike and including MUFF @ 2 per Km.	No	318		
9	Straight Joint Closure / Branch Joint Closure @ one per 2 Km	No	274		
10	Stay arrangement for 7M/8M steel poles	No	5,415		
B.5	Zone PoP				
1	Zone Routers (including SFP modules for connecting Zones to Mandals)	No	3		
2	Pizza Box type OLT (8 port) for Horizontal Connectivity	No	2		
3	Pizza Box type OLT (16 port) for Horizontal Connectivity	No			
4	24 Port Distribution Switch for connectivity to local end points	No	3		
5	FDMS Type-1 for Zone	No	3		
6	Air Conditioner - 2 Ton (Industrial Grade) (Zone)	No	6		
7	Rack - 42U floor mount with all accessories for Zones	No	9		
8	Online UPS (15 KVA)	No	3		
9	D.G Set (25 KVA)	No	3		
10	Servo Stabilizer(25 KVA)	No	3		
B.6	Mandal PoP				
1	Mandal Router (including SFP modules for connecting Mandals to GPs)	No	182		
1.1	10G BASE-LR SFP Module	No			
1.2	10G BASE-ER SFP Module	No	126		
1.3	10G BASE-ZR SFP 10G Module for SMF	No	38		
2	OLT for Horizontal Connectivity at Mandal PoP – Chassis Based	No	182		
3	OLT for Horizontal Connectivity at Mandal PoP – Pizza Box (8 Port)	No			

Annexure 1 (BOQ and Price) -LOA Amendment - 3

S. No	Item Description	Unit	AO-3 Qty	Unit Cost (INR)	AO-3 cost(INR)
4	OLT for Horizontal Connectivity at Mandal PoP – Pizza Box (16 Port)	No			
5	ONT	No	4,398		
6	FDMS (Indoor) at Mandal- 288F	No			
7	FDMS (Indoor) at Mandal- 144F	No	364		
8	FDMS (Indoor) at Mandal- 96F	No	59		
9	FDMS (Indoor) at Mandal- 48F	No	195		
10	Rack - 42U floor mount with all accessories for Mandals	No	182		
11	Online UPS (6 KVA) with 60 minutes power back up	No	182		
12	Servo Stabilizer (20 KVA)	No	182		
13	Air Conditioner - 2 Ton (Industrial Grade) (Mandal PoP)	No	182		
14	Point To Point/ Point To Multi Pont Links for wireless connectivity	No			
15	16 Port Distribution Switch for connectivity to local end points	No	182		
B.7 Gram Panchayat PoP					
1	Access Router (including SFP module for connecting OLT)	No	1,228		
1.1	10G BASE-LR SFP Module	No			
1.2	10G BASE-ER SFP Module	No	1,000		
1.3	10G BASE-ZR SFP 10G Module for SMF	No	28		
2	8 Port Distribution Switch for connectivity to local end points	No	1,228		
3	Metro Ethernet Switch (L3)	No			
4	Pizza Box Based OLT (8 Port)	No	874		
5	Pizza Box Based OLT (16 Port)	No	231		
6	Chassis Based OLT	No	123		
6.1	GPON card: 16xGPON interface module	No	100		
6.2	10G optical transceiver, SFP+, 1310nm, 10Gb/s, SM 10KM	No	350		
6.3	GE SX MM 850 nm pluggables	No	100		
7	Rack - 24U Floor mount with all accessories for GPs	No	3,786		
8	FDMS(Indoor) at GP- 24 F	No	491		
9	FDMS(Indoor) at GP- 48 F	No	3,057		
10	Online Hybrid UPS at GP PoP (1 KVA)	No	3,593		
11	HFTB (indoor)-Govt. Institutions	No	12,150		
12	ONT	No	7,365		
13	Point To Point/ Point To MultiPont Links for wireless connectivity	No			
14	Cat6 Eternet cable	Km	150		
15	RJ45 connectors	No	20,000		
B.8 EMS for NOC					
1	Element Management System (EMS) Solution including all Hardware, Software, Licenses, etc. (For IP-MPLS)	No	1		
2	Element Management System (EMS) Solution including all Hardware, Software, Licenses, etc. (For GPON)	No	1		
B.9 Services for UG OFC laying					
1	Duct Integration Testing (DIT) and rectification of the existing duct, where DIT fails and/or the duct is missing, including all the material and services required for rectification/replacement of missing duct	Km	5,568		
2	Excavation of trench and backfilling, reinstatement and compact of the trench for PLB pipe laying (by MSI) and duct laying	Km	4,706		
3	Pulling/laying / blowing of optical Fibre Cable (48 core fiber) inside laid PLB duct and at crossings(with protection provided) , splicing/jointing, commissioning, AT, ABD etc.	Km	7,751		
4	Pulling/laying / blowing of optical Fibre Cable (96 core fiber) inside laid PLB duct and at crossings(with protection provided) ,splicing/jointing, commissioning, AT, ABD etc.	Km	2,270		
5	Pulling/laying / blowing of optical Fibre Cable (144 core fiber) inside laid PLB duct and at crossings(with protection provided) ,splicing/jointing, commissioning, AT, ABD etc.	Km	868		
6	Pulling/laying / blowing of optical Fibre Cable (288 core fiber) inside laid PLB duct and at crossings(with protection provided) , splicing/jointing, commissioning, AT, ABD etc.	Km	371		

Annexure 1 (BOQ and Price) -LOA Amendment - 3

S. No	Item Description	Unit	AO-3 Qty	Unit Cost (INR)	AO-3 cost(INR)
B.10	Services- Active Infrastructure				
1	Installation, integration, testing and commissioning of Electronics at Zonal Level	No	3		
2	Installation, integration, testing and commissioning of Electronics at Mandal Level	No	182		
3	Installation, integration, testing and commissioning of Electronics at GP Level	No	3,775		
4	One Time Site Preparation cost for all Civil & Electrical Works including proper earthing at Zone	No	3		
5	One Time Site Preparation cost for all Civil & Electrical Works including proper earthing at Mandal	No	182		
6	One Time Site Preparation cost for all Civil & Electrical Works including proper earthing at GP	No	3,775		
B.11	Services for Aerial OFC Laying				
1	Erection of poles including excavation, fixing of MUFF, concreting, Backfilling, Reinstatement, Compaction of earth, Stay arrangements, coil earthing etc. and sign writing on poles with paint	No	3,882		
2	Slings / Laying of ADSS 48 core OFC including fixing of installation accessories and fixtures etc., splicing, jointing, commissioning and AT etc.	Km	537		
3	Slings / Laying of 2 core Drop cable (Oval Type) from splitter to the Govt. Inst. including survey, fixing of installation accessories and fixtures etc., splicing, jointing, commissioning and AT	Km	7,905		
B.12	Accessories at PoPs				
1	Fibre Patch cord (1M)	No	17,964		
2	Fibre Patch cord (3M)	No	32,348		
3	Fibre Patch cord (5M)	No	4,510		
4	Fibre Patch cord (10M)	No	1,100		
5	LGX 1:2 splitter (for aerial use)	Nos	263		
6	LGX 1:4 splitter (for aerial use)	Nos	651		
7	LGX 1:8 splitter (for aerial use)	Nos	5,449		
8	LGX 1:16 splitter (for aerial use)	Nos	161		
9	Splitter box type-1 (upto LGX 1:8 splitter)	Nos			
10	Splitter box type-1 (upto LGX 1:16 splitter)	Nos	143		
	Total of B (SHQ to GP) (CAPEX)				
	O&M except NOC & DWDM				
1	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 1	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 2	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 3	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 4	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 5	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 6	Km	1,051.2		
	O&M per Route km of Core Ring i.e Zone to Zone Connectivity Year 7	Km	1,051.2		
2	O&M per Route km of Mandal to Mandal Connectivity Year 1	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 2	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 3	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 4	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 5	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 6	Km	2,392.58		
	O&M per Route km of Mandal to Mandal Connectivity Year 7	Km	2,392.58		
3	O&M per Route km of GP to GP Connectivity Year 1	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 2	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 3	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 4	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 5	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 6	Km	7,600.4		
	O&M per Route km of GP to GP Connectivity Year 7	Km	7,600.4		
4	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 1	No.	3,775		
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 2	No.	3,775		
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 3	No.	3,775		

Annexure 1 (BOQ and Price) -LOA Amendment - 3

S. No	Item Description	Unit	AO-3 Qty	Unit Cost (INR)	AO-3 cost(INR)
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 4	No.	3,775		
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 5	No.	3,775		
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 6	No.	3,775		
	O&M cost of each GP PoP including all active, passive & auxiliary infra Year 7	No.	3,775		
5	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 1	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 2	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 3	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 4	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 5	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 6	No.	182		
	O&M cost of each Mandal PoP including all active, passive & auxiliary infra Year 7	No.	182		
6	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 1	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 2	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 3	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 4	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 5	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 6	No.	3		
	O&M cost of each Zonal PoP including all active, passive & auxiliary infra Year 7	No.	3		
7	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 1	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 2	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 3	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 4	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 5	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 6	Km	7,905		
	O&M cost of each Govt. Institution including all active, passive & auxiliary infra Year 7	Km	7,905		
	Total of O&M for SHQ to GP (Except NOC + DWDM)				2,13,59,59,252.35
	Total of Capex & Opex for Phase 1 - Package C				9,13,80,01,701.01



Bhubaneswar Smart City Limited

5th Floor, ICOMC Tower, Bhoi Nagar, Unit-9, Bhubaneswar- 751022
E-mail Id: bbsr.bscl@gmail.com, CIN: U74990OR2016PLC020016
Telephone-0674- 2548428 FAX: 0674-2540811

No 2232

Date 18.11.2023

To whomsoever it may Concern

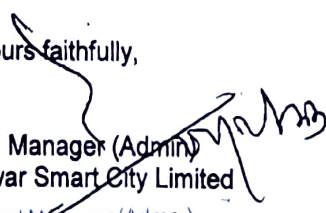
This is to certify that **M/s QuadGen Wireless Solutions Pvt Ltd** working as a System Integrator (SI) for Bhubaneswar Smart City Limited with M/s. Honeywell Automation India Limited has successfully completed Supply, Installation Commissioning and Management of 664 Cisco IP/MPLS Nodes, Establishment of Robust Data Centre and Data Recovery Centre with Cyber Security Solutions and maintaining the network through Integrated Command & Control Centre comprising Element Management System, Network Management System, Enterprise Network Management System and OSS/BSS System.

QuadGen also successfully completed Supply, Trenching, Ducting of HDPE PLB Duct of HDPE PLB Duct spanning 790 Kms and the Supply, Laying, Installation, Splicing, Termination, Testing and Commissioning of 846 Kms Underground Optical Fibre Cable for Bhubaneswar Smart City Smart Solutions Project.

Further QuadGen has been diligently fulfilling the Operations and Maintenance responsibility for the above-mentioned scope since July 2022 and their performance and quality of work delivered have consistently met and exceeded expectations, thereby contributing significantly to the advancement and efficiency of the project.

This certificate attests to the competence, professionalism, and unwavering commitment demonstrated by M/s QuadGen Wireless Solutions Pvt Ltd in executing their duties for the Bhubaneswar Smart City Limited project.

Yours faithfully,


General Manager (Admin)
Bhubaneswar Smart City Limited

General Manager (Admin.)
Bhubaneswar Smart City Limited
Bhubaneswar

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order

Number	Version	Date
4412191789	1	04-JUL-2018

Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.

Vendor Address:

QuadGen Wireless Solutions Pvt Ltd
607 6th Flr World Trade Center
Rajaji Nagar
560055 BANGALORE , Karnataka
India
GSTIN : 29AAACQ2351D1ZQ

Your Vendor Number with us: 2124649

Tel: 8022658704

Bill To - mailing address:

GSTIN: 27AAACT3904F1ZM
Honeywell Automation India Limited,
56 and 57 Hadapsar Industrial Estate,
Hadapsar,
411013 PUNE, MAHARASHTRA.
India

Ship to:

BHUBANESWAR SMART CITY LIMITED
A/C Honeywell Automation India Limited
Block 1, 2nd Floor,
BMC-Bhawani Mall,
Saheed Nagar,
751007 BHUBANESWAR. , Odisha
India
GSTIN : 21AAACT3904F1ZY

Honeywell Contact:

Buyer: Name: Mahanta, Shrikant
Tel: +91 (0) 22 6765 0725
Fax: +91 (0) 22 6765 0736
Email: shrikant.mahanta@honeywell.com

Accts Payable: Tel:
Email: ACSHAILAccountspayable@honeywell.com

Item	Material/Description	Quantity	UoM	Unit Price	Net Amount	TAX
Terms of payment : Pay-When-Paid pay terms, 0% retainage Currency : INR Terms of delivery : EXW(Ex Works) /EXWORKS The prices committed on this purchase order will remain firm, till the full execution of the order. "HSN/SAC Code shown in purchase order are as per our system. The obligation to indicate the correct HSN/SAC classification on the invoice and charge correct GST lies with the vendor." The acceptance of this order shall be conveyed by the supplier to the purchaser within 7 days from the date of receipt of PO by supplier, failing which, it shall be deemed to be accepted unconditionally by the supplier. This Purchase Order is electronically approved, no signature is required. With effect from 1st April, 2010, as per new provisions (section 206AA) in the Income Tax Act, 1961 every vendor providing service needs to have Permanent Account Number (PAN). If the same is not there then Tax(TDS) shall be deducted at 20% from the amount of the bill. Kindly provide scan copy of your PAN card and also mention the same on your bill so that we can update the same in our system. Kindly ensure that your PAN is updated properly in our system. Supplier must send Test certificate along with the shipment. HAIL reserves the right to differ the payment if the supplies or services are not certified by end customer.						
10	HARDWARE FOR IT Hardware for IT HSN/SAC Code : 85044090	2.00	EA			Y

CIN: L29299PN1984PLC017951

"Bill to mailing address" is "Bill to" for GST purpose.
"Sold to" is Registered Office Address for GST purpose.

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Taxes and Duties Integrated GST 18 %						
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396						
20	SERVER LOAD BAL Server Load Balancer HSN/SAC Code : 85176990 Taxes and Duties Integrated GST 18 %	3.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
30	LINK LOAD BALANCER Link Load Balancer HSN/SAC Code : 85176990 Taxes and Duties Integrated GST 18 %	3.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
40	DDOS SOLUTION DDOS Solution HSN/SAC Code : 85238020 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
50	FIREWALL Firewall HSN/SAC Code : 85176990 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396						

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

	Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396					
60	ANTIVIRUS ANTIVIRUS HSN/SAC Code : 85238020 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	1.00	EA			Y
70	HRDWARE FR HOSTING Hardware for Data Hosting HSN/SAC Code : 85381010 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	1.00	EA			Y
80	FIRE ENCLOSURE Fire Proof Enclosure HSN/SAC Code : 84717090 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	2.00	EA			Y
90	IOGEAR-GCS1808I KVM Switch HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	2.00	EA			Y
100	UCSS-S3260 UCS S3260 Storage Server Base Chassis HSN/SAC Code : 84717090	2.00	EA			Y

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Taxes and Duties Integrated GST 18 %						
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
110	UCSB-5108-AC2= Blade Server AC2 Chassis0 PSU8 fans0 FEX HSN/SAC Code : 84715000 Taxes and Duties Integrated GST 18 %	8.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
120	UCSB-B200-M5-U UCS B200 M5 Blade CPU mem HDD mezz HSN/SAC Code : 84715000 Taxes and Duties Integrated GST 18 %	74.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396						
130	NEXUS-9300 Data Centre TOR Switch HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	4.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
140	ASR1001-HX Cisco ASR1001-HX System HSN/SAC Code : 85176930 Taxes and Duties Integrated GST 18 %	4.00	EA			Y
Delivery Date: 30-MAY-2018 Project Number:INB-009396						

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396						
150	LOCAL SITE SERVER Local On-Site Server HSN/SAC Code : 84715000 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	1.00	EA			Y
160	RACKS Communication Cabinets with Racks HSN/SAC Code : 85381010 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	1.00	EA			Y
170	ATEN-CE770 USB KVM Extender HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	20.00	EA			Y
180	ATEN-VS0801H AV Auto Switcher HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 % Delivery Date: Project Number:INB-009396 Project Number:INB-009396	5.00	EA			Y
190	ATEN-194A Distribution Amplifier HSN/SAC Code : 85184000 Taxes and Duties Integrated GST 18 % Delivery Date:	1.00	EA			Y
		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396 Project Number:INB-009396						
200	ATEN-VC800 Audio Extractor HSN/SAC Code : 85184000 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
210	EV-PA-2400T Audio Distribution Amplifier HSN/SAC Code : 85184000 Taxes and Duties Integrated GST 18 %	2.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
220	EV-DC-ONE Audio Processor HSN/SAC Code : 85184000 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
230	SHURE-BLX14 Wireless Microphone HSN/SAC Code : 85182900 Taxes and Duties Integrated GST 18 %	2.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
240	ATEN-VM1600 Matrix Switcher HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	5.00	EA			Y
Delivery Date: Project Number:INB-009396		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396						
250	GMR5000 Network Time Protocol based Digital Cloc HSN/SAC Code : 85437099 Taxes and Duties Integrated GST 18 %	2.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
260	CANON C3520 Multi-Functional Printers HSN/SAC Code : 84433100 Taxes and Duties Integrated GST 18 %	2.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
270	CRESTRON - CP3 Room Control System HSN/SAC Code : 90328990 Taxes and Duties Integrated GST 18 %	9.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
280	CTS-SX80-IPST60-K9 Cisco SX80 Codec, Speaker Track 60, Touc HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	5.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
290	CP-8831-NR-K9= aseControl Panel With No DECT Radio HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	5.00	EA			Y
Delivery Date:		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396 Project Number:INB-009396						
300	CP-7841-W-K9= Cisco UC Phone 7841 White HSN/SAC Code : 85171810 Taxes and Duties Integrated GST 0 %	17.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
310	PROFX - PRO 226 Ceiling Speakers HSN/SAC Code : 85182200 Taxes and Duties Integrated GST 18 %	120.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
320	NEC X841UHD2 70 Monitor Display HSN/SAC Code : 85287390 Taxes and Duties Integrated GST 0 %	12.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
330	SMART POLE-ACCE Any Hardware/software for smart pole HSN/SAC Code : 85287390 Taxes and Duties Integrated GST 0 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
340	SMART POLES Smart Poles HSN/SAC Code : 73079110 Taxes and Duties Integrated GST 0 %	20.00	EA			Y
Delivery Date: Project Number:INB-009396		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396						
350	C1-AIR-K9 ONE Access - Wireless - CHOOSE ONLY QTY HSN/SAC Code : 85234990 Taxes and Duties Integrated GST 0 %	1,800.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
360	AIR-AP1562I-D-K9 802.11ac W2 Low-Profile Outdoor AP, Inte HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
370	UPS - EMERSON UPS - Emerson HSN/SAC Code : 85044090 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
380	VHFU-USFG10 Rodent Repellent System HSN/SAC Code : 85432090 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
390	HPE Enterprise Management System HSN/SAC Code : 85238020 Taxes and Duties Integrated GST 18 %	1.00	EA			Y

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

	Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	30-MAY-2018				
400	CISCO-PRIME Network Management System HSN/SAC Code : 85234990 Taxes and Duties Integrated GST 0 %	1.00	EA			Y
	Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	30-MAY-2018				
410	BITCOMM Fibre Asset Management System HSN/SAC Code : 85238020 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
	Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	30-MAY-2018				
420	VOLKTEK IMC-561 Media Converter HSN/SAC Code : 85176990 Taxes and Duties Integrated GST 18 %	1,500.00	EA			Y
	Delivery Date: Project Number:INB-009396 Project Number:INB-009396	30-MAY-2018				
430	CISCO-CAT-3650 Server Workstation Connectivity Switch HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	12.00	EA			Y
	Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396	30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396						
440	CISCO-ASR-9006 Core Router and Internet Router HSN/SAC Code : 85176930 Taxes and Duties Integrated GST 18 %	4.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
450	CISCO-ASR-907 Backbone Ethernet Switch Router HSN/SAC Code : 85176930 Taxes and Duties Integrated GST 18 %	7.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
460	CISCO-ASR920 Industrial Grade Distribution Switch HSN/SAC Code : 85176930 Taxes and Duties Integrated GST 18 %	54.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
470	CISCO-IE4000 Industrial Grade Field Switch HSN/SAC Code : 85176290 Taxes and Duties Integrated GST 18 %	540.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
480	RACKS Communication Cabinets with Racks HSN/SAC Code : 85381010 Taxes and Duties Integrated GST 18 %	25.00	EA			Y

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
490	INTELLIGENT PANEL Intelligent Patch Panel HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 %	1.00	EA			Y
Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
500	3C-PPRM-02-1U 12 Count FTP HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 %	540.00	EA			Y
Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
510	3C-PPRM-03-2U 144 Count FTP HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 %	7.00	EA			Y
Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
520	3C-PP-RM-3U-LD Fibre Distribution Management System HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 %	7.00	EA			Y
Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
530	FIBRE OPTIC-PC Fibre Optic Patch Cords HSN/SAC Code : 85447090 Taxes and Duties Integrated GST 18 %	10,000.00	EA			Y
Delivery Date:		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396 Project Number:INB-009396						
540	OPTICAL CONNECTORS Optical Connectors HSN/SAC Code : 85367000 Taxes and Duties Integrated GST 18 %	5,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
550	UTP-CAT6 UTP Cat 6 Armoured Cable HSN/SAC Code : 85444999 Taxes and Duties Integrated GST 18 %	600.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
560	12-COUNT-FOC 12 Count FOC with nonmetallic armouring. HSN/SAC Code : 90011000 Taxes and Duties Integrated GST 18 %	200,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
570	144-COUNT-FOC 144 Count FOC HSN/SAC Code : 90011000 Taxes and Duties Integrated GST 18 %	480,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
580	MANHOLE Manhole HSN/SAC Code : 90011000 Taxes and Duties Integrated GST 0 %	340.00	EA			Y
Delivery Date: Project Number:INB-009396		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

Project Number:INB-009396						
590	HANDHOLE Handhole with Cover HSN/SAC Code : 90011000 Taxes and Duties Integrated GST 0 %	2,267.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
600	TRENCHING Trenching HSN/SAC Code : 90011000 Taxes and Duties Integrated GST 0 %	680,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
610	1X160MM- HDPE DUCT 1x160mm- HDPE Duct HSN/SAC Code : 39172190 Taxes and Duties Integrated GST 18 %	150,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
620	1X25MM-HDPE DUCT 1x25mm-HDPE Duct HSN/SAC Code : 39172190 Taxes and Duties Integrated GST 18 %	200,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				
630	2X63MM-HDPE DUCT Set of 2x63mm HDPE Duct HSN/SAC Code : 39172190 Taxes and Duties Integrated GST 18 %	480,000.00	EA			Y
Delivery Date: Project Number:INB-009396 Project Number:INB-009396		30-MAY-2018				

Sold To:
Honeywell Automation India Limited
56 & 57 Hadapsar Industrial Estate
411013 PUNE
India

Purchase order		
Number	Version	Date
4412191789	1	04-JUL-2018
Honeywell's Purchase Order Terms and Conditions attached to, transmitted with, or referenced in this Purchase Order (together with all related specifications, drawings, or other documents referred to on the face of the Purchase Order or related to this Purchase Order) are incorporated by reference and shall govern the transaction(s) entered into pursuant to this Purchase Order. Honeywell's Purchase Order number and line item number must appear on all invoices, shipping documents and notices, bills of lading, and all correspondence related to this order. Unless prohibited by law or otherwise indicated on the face of this Purchase Order, all Payment terms shall commence from the date upon which both (i) a correct invoice is received at the specified "Bill to - mailing" address and in accordance with the Net terms of payment indicated below subject to Honeywell's scheduled payment runs and (ii) all goods and/or services are received in conformance with the Purchase Order.		

640	3C-FOE-2-48 Fibre Optic Splice Closure HSN/SAC Code : 85177090 Taxes and Duties Integrated GST 18 %	340.00	EA			Y
Delivery Date:		30-MAY-2018				
Project Number:INB-009396						
Project Number:INB-009396						
Total net value excl. tax					INR	1,175,986,306.00

Approved by:	Mahanta, Shrikant
---------------------	-------------------

TERMS AND CONDITIONS

Honeywell Standard Purchase Order Terms and Conditions for Goods and Services

1. Acceptance - Order of Precedence - Modification

This Purchase Order is for the purchase of goods, services, or both as described on the face of this document (collectively, "Goods") and is issued by the member of the Honeywell International Inc. group of companies identified on the face of this document ("Honeywell"). This Purchase Order is deemed accepted when Supplier returns the acknowledgment copy of this Purchase Order or begins performing, whichever is earlier. Honeywell rejects any additional or inconsistent terms and conditions offered by Supplier at any time. Any reference to Supplier's quotation, bid, or proposal does not imply acceptance of any term, condition, or instruction contained in that document. No course of prior dealing or usage of the trade may modify, supplement, or explain any terms used in this Purchase Order. These terms and conditions together with the specifications, drawings, or other documents referred to on the face of the Purchase Order, or attached, or any documents incorporated by reference, supersede any prior or contemporaneous communications, representations, promises, or negotiations, whether oral or written, respecting the subject matter of this Purchase Order. All contract documents related to this Purchase Order are interpreted together as one agreement; provided, however, that in the event of any conflict among the provisions of one or more of such contract documents as are validly in effect at the time of such conflict, the following order of precedence applies: (a) any consignment, stocking or other replenishment agreement; then (b) any supply agreement; then (c) any contract for labor services; then (d) the face of the Purchase Order and any supplemental terms included or incorporated by reference; then (e) these general Purchase Order provisions; and finally (f) other contract documents agreed to in writing by the parties. No change to or modification of this Purchase Order will be binding upon Honeywell unless in writing, specifically identifying that it amends this Purchase Order, and signed, or approved electronically, by an authorized procurement representative of Honeywell. If Supplier becomes aware of any ambiguities, issues, or discrepancies between this Purchase Order and any specification, design, or other technical requirement applicable to this Purchase Order, Supplier will immediately submit the matter to Honeywell for resolution.

2. Delivery, Shipment and Packaging

2.1. Supplier will deliver Goods in the quantities and on the date(s) specified on the Purchase Order or Purchase Order schedule releases. If delivery dates are not stated, Supplier will offer its best delivery date(s), which will be subject to acceptance or rejection by Honeywell. Unless otherwise directed, all Goods shipped in one day from and to a single location must be consolidated on one bill of lading or air waybill, as appropriate. TIME IS OF THE ESSENCE.

2.2. If the delivery schedule is endangered for any reason other than Honeywell's fault then Supplier will, at its expense, deliver Goods by the most expeditious shipping method required to fulfill the Purchase Order delivery requirements. Honeywell reserves the right to reject, at no expense to Honeywell, all or any part of any delivery that varies from the quantity authorized by Honeywell for shipment. Honeywell reserves the right to pursue additional remedies caused by late delivery, including but not limited to (i) incremental freight expenses incurred by Honeywell for shipments of Goods to Honeywell and for shipments of Goods or finished product containing or incorporating the Goods from Honeywell to any customer of Honeywell, and (ii) all liquidated damages payable by Honeywell as a result of any such late delivery. Supplier will not make any substitutions without Honeywell's prior written approval. All items will be packaged according to Honeywell's instructions or, if none, according to good commercial practice in a manner sufficient to ensure receipt in an undamaged condition. Honeywell will not be liable for any discharge, spill or other environmental incident or condition (including clean-up costs) involving any Goods shipped under the Purchase Order until received by Honeywell. All containers will be properly marked for identification as instructed on Honeywell's Purchase Order and contain a packing slip that details, at a minimum, the Honeywell Purchase Order number(s), product part number, detailed product description, country of origin, total number of boxes in shipment, quantity of product shipped, and final delivery address. Items shipped in advance of Honeywell's delivery schedule may be returned at Supplier's expense. For domestic shipments, if requested by Honeywell, and for all international shipments, Supplier will give notice of shipment to Honeywell when the Goods are delivered to a carrier for transportation. The Purchase Order number(s) must appear on all correspondence, shipping labels, and shipping documents, including all packing sheets, bills of lading, and air waybills.

2.3. All Goods, unless specifically exempted by the destination country's governing authorities, must be marked with the country of origin (manufacture) of the Goods in a conspicuous place as legibly, indelibly, and permanently as the nature of the article or container permits.

2.4. Supplier will provide Honeywell with (a) the Harmonized Tariff Schedule number, country of origin information or certificates, manufacturer's affidavits, applicable free trade agreement ("FTA") certificates, and any other documents or information Honeywell may require to comply with international trade regulations or to lawfully minimize duties, taxes, and fees, and (b) FTA certificates for all Goods that qualify under one or more FTAs. Supplier will provide Honeywell all documents, records, and other supporting information necessary to substantiate the Goods' qualification under an FTA. Supplier will exert reasonable efforts to qualify the Goods under FTAs.

2.5. Within one business day after Supplier delivers the Goods to the carrier or at such earlier time as Honeywell may request, Supplier will send Honeywell a complete set of shipping documents including but not limited to the commercial invoice, packing list, and air waybill, or three original parts of the combined through-bill of lading, clean without notation, necessary to release the Goods to Honeywell's custody.

3. Notice of Delay. Supplier must immediately notify Honeywell in writing with all relevant information relating to any delay or threatened delay of the timely performance of this PO.

4. Excusable Delay (Force Majeure)

Neither party will be in default for any delay or failure to perform due to causes beyond its control and without its fault or negligence, but any delay or failure to perform caused by the default of a sub tier supplier of Supplier will be excused only if (a) it is beyond the control of both Supplier and its sub-tier supplier(s) and without the fault or negligence of any of them, and (b) the Goods to be furnished cannot be obtained from other sources in sufficient time to permit Supplier to meet the delivery schedule. Supplier's ability to sell Goods at a more advantageous price or Supplier's economic hardship in buying materials or processing necessary for manufacture of the Goods will not constitute an excusable delay event. The party affected by an excusable delay will promptly provide written notice to the other, explaining in detail the full particulars and expected duration of the excusable delay, and will use its best efforts to remedy the delay if it can be remedied. If Supplier's delivery is delayed, Honeywell may cancel deliveries scheduled during the excusable delay period or elect to extend the period of performance to cover the period of delay caused by the excusable delay. If an excusable delay occurs that affects delivery of Goods to Honeywell, Supplier will allocate its available supply of Goods in a manner that assures Honeywell of at least the same proportion of Supplier's total output of Goods as was allocated to Honeywell before the excusable delay event. If delivery of any Goods is delayed for more than 30 days, Honeywell may, without liability, cancel all or any part of this Purchase Order.

5. Performance Assurance Plan

If Honeywell, in its sole discretion, determines there is a significant risk that Supplier will fail to meet its performance or delivery requirements under this Purchase Order, Honeywell may require Supplier to perform under a Honeywell Performance Assurance Plan. The Performance Assurance Plan may include specific reporting and performance requirements reasonably tailored to ensure Supplier's adequate performance under identified provisions of this Purchase Order. Any failure by Supplier to satisfy the terms of the Performance Assurance Plan is a material breach of this Purchase Order.

6. Shipping Terms, Title and Risk of Loss

6.1. If the Goods will be transported from Supplier's location in the U.S. to Honeywell's designated delivery location in the U.S., unless otherwise specified on the face of the Purchase Order or in a separate signed agreement, the F. O. B. point is Honeywell's designated delivery location. When the F. O. B. point is Supplier's location, Supplier bears all risk of loss or damage to the Goods and title passes to Honeywell upon delivery of the Goods by Supplier to the carrier designated or approved by Honeywell. When the F. O. B. point is Honeywell's location, Supplier bears all risk of loss or damage to the Goods and title passes to Honeywell upon delivery of the Goods by Supplier at Honeywell's designated delivery location.

6.2. In all other cases, unless otherwise specified on the face of the Purchase Order or in a separate signed agreement, (a) Supplier will deliver the Goods DAP (INCOTERMS 2010) at Honeywell's designated delivery location, and (b) title to Goods passes to Honeywell upon receipt at Honeywell's designated delivery location.

6.3. The foregoing does not relieve Supplier of any responsibility for hidden damages discovered after acceptance of the Goods. Notwithstanding the foregoing, title and risk of loss to Goods subject to a consignment, stocking or other replenishment agreement pass upon release of the Goods from consigned inventory or at such other time set forth in such consignment, stocking or other replenishment agreement. Honeywell may direct Supplier to ship the Goods to Honeywell or to any third party designated by Honeywell.

7. Import/Customs Compliance

Supplier assumes all responsibility and liability for any shipments covered by this Purchase Order requiring any government import clearance. If government authorities declare or otherwise impose countervailing duties, antidumping duties, or retaliatory duties on the Goods imported under this Purchase Order, Honeywell reserves the right to terminate this Purchase Order under the Termination provisions of this Purchase Order. Supplier will be debited for any duties, fees, or freight incurred by Honeywell due to Supplier's failure to comply with the terms and conditions of this Purchase Order.

8. Drawback

All drawback of duties, and rights thereto, related to duties paid by Supplier or Honeywell when the Goods are imported or any materials or components used in manufacturing of the Goods will accrue to the exclusive benefit of Honeywell. Duty drawback rights include rights developed by substitution and duty drawback rights obtained from sub-tier suppliers related to the Goods. Supplier will provide Honeywell with all documents, records, and other supporting information necessary to obtain any duty drawback, and will reasonably cooperate with Honeywell to obtain payment.

9. Offset

If Supplier is a non-U.S. entity, Supplier will assist Honeywell in obtaining credit from Supplier's government for the value of relevant Goods purchased to meet any present or future contractual offer or industrial benefit requirements imposed upon Honeywell or its subsidiaries or affiliates. Assistance includes, but is not limited to, providing upon Honeywell's request evidence of the existence, value, content, and other pertinent information relating to the purchases. Honeywell reserves the right to claim these credits for itself or third parties. If Supplier is a U.S. entity that awards any portion of the work under this Purchase Order to any lower tier non-U.S. supplier, Supplier will assign to Honeywell any credits obtained from the lower tier non-U.S. supplier's government relating to this transaction and assist Honeywell in obtaining the earned credits.

10. Honeywell-Supplied Materials, Tooling, Equipment and Technical Data

10.1. Title to any material, components, tooling, equipment, or technical data that Honeywell pays for or provides to Supplier or is responsible for providing to Supplier, including replacements ("Honeywell Property"), will remain or vest with Honeywell. Supplier will conspicuously label Honeywell Property as such, maintain it in good condition, keep written records of the Honeywell Property in its possession and the location of the property, not allow any liens to be placed upon it, and not change its location without prior written approval from Honeywell. Supplier is responsible for inspecting and determining that the Honeywell Property is in useable and acceptable condition.

10.2. Supplier will use Honeywell Property exclusively to fulfill Honeywell Purchase Orders unless otherwise authorized in writing by Honeywell's procurement representative. Honeywell Property is intended for use at the Supplier's site only or as otherwise authorized in writing by Honeywell's procurement representative and, to the extent applicable, is subject to U.S. and other government export or re-export requirements. Supplier is responsible for any loss, damage, or destruction of Honeywell Property and any loss, bodily injury, damage or destruction resulting from Supplier's use of Honeywell Property. Supplier will not include the cost of any insurance for Honeywell Property in the prices charged under this Purchase Order and, to the extent that any Goods contain any Honeywell Property, will not include in the price of any such Good any mark-up or fee with respect to such Honeywell Property. Supplier will return Honeywell Property or dispose of it as Honeywell directs in writing. Honeywell makes no representations and disclaims all warranties (express or implied) with respect to Honeywell Property.

11. Price

Supplier will furnish the Goods at the prices stated on the face of the Purchase Order. If prices are not stated on the face of the Purchase Order, Supplier will offer its lowest prices subject to written acceptance by Honeywell. Unless otherwise provided on the face of the Purchase Order, the prices include all packaging and freight to the specified delivery point; applicable taxes and other government charges including, but not limited to, all sales, use, or excise taxes; and all customs duties, fees, or charges. To the extent that value added tax (or any equivalent tax) is properly chargeable on the supply to Honeywell of any Goods, Honeywell will pay the tax as an addition to payments otherwise due Supplier under this Purchase Order, if Supplier provides to Honeywell a value-added tax (or equivalent tax) invoice. Upon the agreement of the parties to reduced pricing for the Goods, such pricing shall immediately apply to all Goods in consignment, stocking or replenishment arrangement with Supplier, all undelivered Goods, all open and unfilled Purchase Orders, all future Purchase Orders and all unconsumed inventory owned by Honeywell. To the extent Honeywell has not received from Supplier all applicable forms regarding compliance with applicable tax law, Honeywell reserves the right to deduct from any payment to Supplier pursuant to this Purchase Order those amounts that Honeywell, in its sole discretion, deems to be required to be withheld in order to comply with the tax laws of any applicable jurisdiction.

12. Price: Most Favored Customer and Meet or Release

TERMS AND CONDITIONS

Supplier warrants that the prices charged for the Goods delivered under this Purchase Order are the lowest prices charged by Supplier for similar Goods. If Supplier charges a lower price for similar goods, Supplier must notify Honeywell and apply that price to all Goods ordered under this Purchase Order by immediately paying Honeywell the price difference and applying the lower price to all Purchase Orders. If at any time before full performance of this Purchase Order Honeywell notifies Supplier in writing that Honeywell has received a written offer from another supplier for similar Goods at a price lower than the price set forth in this Purchase Order, Supplier must immediately meet the lower price for any undelivered Goods. If Supplier fails to meet the lower price Honeywell, at its option, may terminate the balance of the Purchase Order without liability. As directed by Honeywell, Supplier will provide the Goods at the prices listed on the face of this Purchase Order, subject to these terms and conditions, to other Honeywell divisions and affiliates and any third-party Honeywell sub-supplier or designee.

13. Invoicing and Payment

After each shipment made or service provided, Supplier will submit to the address indicated on the Purchase Order an invoice listing a description of the Goods provided and, as applicable, part numbers, quantity, unit of measure, hours, and the unit and total prices. This invoice must match the corresponding Purchase Order pricing, quantities, and terms, and must be sent to the invoice address listed on the Purchase Order. All applicable taxes and other Government charges including, but not limited to, sales, use, or excise taxes; value added tax, customs duties, fees and all incidental charges including but not limited to royalties, selling commissions, nonrecurring engineering, or other incidental charges must be separately itemized and identified on the invoice. The invoice must also include the following information in English, or in the destination country's official language if required: (a) name and address of Supplier and the Honeywell entity purchasing the Goods; (b) name of shipper (if different from Supplier); (c) Honeywell's Purchase Order number(s); (d) country of export; (e) detailed description of the Goods; (f) Harmonized Tariff Schedule number; (g) country of origin (manufacture) of the Goods, or if multiple countries of origin, the country of origin of each part shipped; (h) weights of the Goods shipped; (i) currency in which the sale was made; (j) payment terms; (k) shipment terms used; and (l) all rebates or discounts. The invoice will be accompanied (if applicable) by a signed bill of lading or express receipt evidencing shipment. Payment of an invoice does not constitute acceptance of the Goods and is subject to appropriate adjustment should Supplier fail to meet the requirements of the Purchase Order. Payment terms are net 120 days from receipt of a Honeywell-approved compliant invoice unless otherwise stated on the face of this Purchase Order or other written agreement executed by both parties; provided, however, that in the event that applicable law requires a payment terms period of shorter duration, payment terms shall be the maximum period allowed by applicable law. Invoices will not be approved unless they accurately reference conforming Goods received by Honeywell or services satisfactorily performed for Honeywell, as well as a valid Purchase Order number, supplier name and address, line description, quantity at line level, price at line level, withholding rates and/or amounts for applicable taxes. Payment will be scheduled for the next payment cycle following the net terms for the Purchase Order.

14. Set Off. Honeywell may deduct any amount owing from Supplier to Honeywell as a set off against any amount owing to Supplier under this Purchase Order.

15. Inspection

15.1. All Goods may be inspected and tested by Honeywell, its customers, higher-tier contractors, and end users at all reasonable times and places. If inspection or testing is made on Supplier's premises, Supplier will provide, without charge, all reasonable facilities and assistance required for the inspection and tests. Supplier's standard inspection and testing system must be approved by Honeywell in writing. All inspection and testing records, including sub-tier supplier records relating to the Goods, will be maintained by Supplier and made available to Honeywell during the performance of this Purchase Order, and for such longer periods if specified by Honeywell.

15.2. Final inspection and acceptance by Honeywell will be at destination unless otherwise specified in this Purchase Order. Honeywell may inspect all or a sample of Goods and may reject all or any portion of the Goods if Honeywell determines them to be defective or nonconforming. If Honeywell performs any inspection (other than the standard inspection) after discovering defective or nonconforming Goods, any additional inspection costs will be paid by Supplier. No inspection, tests, approval, design approval, or acceptance of the Goods relieves Supplier from responsibility for warranty or any latent or patent defects, fraud, or negligence. If Goods are defective or nonconforming, Honeywell may, by written notice to Supplier: (a) rescind this Purchase Order as to the Goods; (b) accept the Goods at an equitable reduction in price; or (c) reject the Goods and require the delivery of replacements. Delivery of replacements will be accompanied by a written notice specifying that the Goods are replacements. If Supplier fails to deliver required replacements promptly, Honeywell may correct any retained defective or nonconforming Goods at Supplier's expense; replace them with Goods from another supplier and charge the Supplier the cost thereof, including cover, and any incidental costs; or terminate this Purchase Order for cause.

16. Warranty

16.1. Supplier warrants to Honeywell, its successors, assigns, customers, and end users that during the entire Warranty Period specified below, all Goods furnished (including all replacement or corrected Goods or components and regardless of whether all or any part of such furnished Goods or any replacement or corrected Goods was manufactured, distributed or otherwise commercialized by a third party prior to delivery by or on behalf of Supplier to Honeywell) will (a) be free from defects in material, workmanship, and design, even if the design has been approved by Honeywell, (b) conform to applicable drawings, designs, quality control plans, specifications and samples and other descriptions furnished or specified by Honeywell, (c) be merchantable, (d) be fit for the intended purposes and operate as intended, (e) comply with all laws,

(f) be free and clear of any and all liens or other encumbrances, and (g) not infringe any patent, published patent application, or other intellectual property rights of any third party and not utilize misappropriated third party trade secret information. Goods that meet the preceding standards are collectively called "conforming Goods." Supplier must obtain third party warranties consistent with Section 16 for all raw materials, components, and services required by Supplier to perform under this Purchase Order ("Components") and Supplier is solely responsible for ensuring that all Components meet these requirements. Any Component that fails to meet these requirements will be deemed to be a non-conforming Good.

16.2. As to services, in addition to any express or implied warranties, Supplier warrants that (a) it possesses the requisite expertise, facilities and equipment necessary and appropriate to perform the services, (b) the services will be performed in a safe and workmanlike manner, and (c) the services will be performed in accordance with the highest standards in the industry.

16.3. The Warranty Period is 36 months from the date of delivery to the end user or such longer period of time mandated by any longer government requirement covering the Goods. In addition to the warranties described above, Supplier also warrants all Goods to the same extent and for the same time period (if extending beyond 36 months) as the warranties provided by Honeywell to Honeywell's customers relating to such Goods. These warranties are for the benefit of Honeywell, Honeywell's customers, and any other person claiming by or through Honeywell. These warranties will survive any delivery, inspection, acceptance, or payment by Honeywell. Claims for breach of warranty do not accrue until discovery of nonconformance, even if the Goods were previously inspected. Any applicable statute of limitations runs from the date of discovery. If conforming Goods are not furnished within the time specified by Honeywell then Honeywell may, at its election, have the nonconforming Goods repaired, replaced, or corrected at Supplier's expense or credited to Honeywell. Supplier is responsible for the costs of repairing, replacing or correcting nonconforming Goods or crediting them to Honeywell, and for all related costs, expenses and damages including, but not limited to, the costs of removal, disassembly, failure analysis, fault isolation, reinstallation, re-inspection, and retrofit of the nonconforming Goods or of Honeywell's affected end-product; all freight charges, including but not limited to incremental freight expenses incurred by Honeywell for shipments of repaired, replaced, or corrected Goods to Honeywell and for shipments of repaired, replaced, or corrected Goods or finished product containing or incorporating repaired, replaced, or corrected Goods from Honeywell to any customer of Honeywell; all customer charges; and all corrective action costs. Unless set off by Honeywell, Supplier will reimburse Honeywell for all such costs upon receipt of Honeywell's invoice. Any replacement Goods are warranted for the same period as the original Goods. Additionally, if any services are found not to be performed as warranted within a period of 36 months after the conclusion of the performance of the services by Supplier, Honeywell may direct Supplier to either refund to Honeywell the amount paid for the services, or perform the services again in a proper manner to the extent necessary to provide Honeywell with the result originally contemplated by Honeywell. The warranties and rights provided are cumulative and in addition to any warranty provided by law or equity.

16.4. If, following delivery, Goods exhibit a substantially similar repetitive root cause, failure mode or defect indicating a common or systemic failure ("Epidemic Failure"), then, without prejudice to Honeywell's rights under Section 22: (a) the party discovering the failure will promptly notify the other and Supplier will provide to Honeywell a preliminary plan for problem diagnosis within one business day of such notification, which plan Supplier will revise at Honeywell's request;

(b) Supplier and Honeywell will diagnose the problem, plan an initial work-around and effect a permanent solution; (c) Supplier and Honeywell will agree on a plan for customer notification, replacement scheduling and remediation, including identification of suspect population, field removal, return and reinstallation, work in process ("WIP"), inventory replacement, and repair, or retrofitting, regardless of location or status of WIP completion; and (d) Supplier is responsible for all costs and damages associated with any Epidemic Failure. Honeywell and Supplier will work together in good faith to establish and expeditiously implement an Epidemic Failure action plan. If Supplier or any of its Component suppliers initiate any Product or Component recalls, retrofits, or service bulletins that affect Product quality, Supplier will immediately communicate this information to Honeywell.

16.5. No part of any software or other deliverables delivered by Supplier under this Purchase Order shall contain any software or component licensed or obtained under any Open Source licensing program. "Open Source" shall mean any software or other material that is distributed as "free software", "open source software" or under a similar licensing or distribution model (including but not limited to the GNU General Public License (GPL), GNU Lesser General Public License (LGPL), Mozilla Public License (MPL), and the Apache License). If Supplier uses Open Source in any software or deliverable, Supplier must first seek written approval from Honeywell and if approved, Supplier must identify each Open Source item along with the applicable license terms. For any such approved Open Source, Supplier represents that (a) Supplier is in compliance with the terms and conditions of all applicable licenses for Open Source and (b) Honeywell's use of such Open Source (i) will not adversely impact Honeywell's proprietary software (ii) will not require Honeywell to make available the source code for any Honeywell propriety software (iii) will not prohibit or limit Honeywell from charging a fee in connection with sublicensing or distributing the software.

16.6. Supplier represents and warrants that there is nothing that will directly, indirectly, actually or potentially restrict or prevent Supplier in any way from fulfilling all its obligations, duties, and services under this Purchase Order, including without limitation any exclusivity or non-compete arrangement.

17. Changes

Honeywell may, by written or electronic notification, direct changes in the drawings, designs, specifications, method of shipment or packing, quantity, or time or place of delivery of the Goods; reschedule the services; or require additional or diminished services. Only authorized Honeywell procurement representatives may issue changes to the Purchase Order. If any change causes an increase or decrease in the cost of, or the time required for, performing this Purchase Order, an equitable adjustment will be made in the Purchase Order price, delivery dates or both, and this Purchase Order will be modified in writing or electronically accordingly. Any claim by Supplier for adjustment under this provision may be deemed to be waived unless asserted in writing (including the amount of the claim) and delivered to Honeywell within 30 days from the date of the receipt by Supplier of the Honeywell-directed change to the Purchase Order. If the cost of property made obsolete or excess as a result of a change is paid by Honeywell, Honeywell may prescribe the manner of disposition of the property. Notwithstanding any disagreement between the parties regarding the impact of a change, Supplier will proceed diligently with its performance under this Purchase Order pending resolution of the disagreement.

18. Design and Process Changes

Supplier will make no changes in the design, materials, manufacturing location, or processes of the Goods specified in the Purchase Order or documents referenced in it, or if none, those in place when the Purchase Order is issued, without the advance written approval of Honeywell's procurement representative. Changes to a process include, but are not limited to, changes to the production process, changes in manufacturing equipment, changes in manufacturing location, or changes between a manual and automated process. This requirement applies whether or not the change affects costs and regardless of the type of change, including product improvements.

19. Stop Work

At any time by written notice and at no cost, Honeywell may require Supplier to stop all or any part of the work under this Purchase Order for up to 120 days ("Stop Work Order"), and for any further period as mutually agreed. Immediately upon receipt of a Stop Work Order, Supplier will comply with its terms. At any time Honeywell may, in whole or in part, either cancel the Stop Work Order or terminate the work under the Termination section of this Purchase Order. To the extent the Stop Work Order is canceled or expires, Supplier must immediately resume work.

20. Termination

TERMS AND CONDITIONS

20.1. The non-breaching party may terminate this Purchase Order if the other party commits a material breach and fails to remedy the breach within 10 calendar days following receipt of written notice specifying the grounds for the breach, except in the case of breach related to safety, health, or security, in which case Honeywell will have the right to immediately terminate the Purchase Order. A material breach includes, but is not limited to, late delivery or delivery of nonconforming Goods. If Supplier breaches its obligations to Honeywell and Honeywell terminates this Purchase Order in whole or in part, Honeywell may charge Supplier for any additional cost it incurs in performing Supplier's obligations or in having such obligations performed by a third party. The solvent party may terminate this Purchase Order upon written notice if the other party becomes insolvent or if any petition is filed or proceedings commenced by or against that party relating to bankruptcy, receivership, reorganization, or assignment for the benefit of creditors. If a termination by Honeywell for breach by Supplier is determined to have lacked cause, such termination will be treated as a termination without cause under Section 20.2.

20.2. Notwithstanding any firm time period or quantity on the face of the Purchase Order, Honeywell may terminate this Purchase Order in whole or in part at any time with or without cause for undelivered Goods or unperformed services upon 10 days' prior written notice.

20.3. If Honeywell terminates this Purchase Order under either 20.1 or 20.2, Honeywell's sole liability to Supplier, and Supplier's sole and exclusive remedy, is payment for Goods received and accepted by Honeywell before the date of termination. The payment can be set off against any damages to Honeywell. Upon termination, Honeywell may require Supplier to transfer title and deliver to Honeywell any completed Goods and Honeywell will pay the Purchase Order price for those Goods subject to set off against any damages to Honeywell. Honeywell may also require Supplier to transfer title and deliver to Honeywell any or all property produced or procured by Supplier to perform this Purchase Order. Honeywell will credit Supplier with the reasonable value of the property, but not more than Supplier's actual cost or the Purchase Order value, whichever is less.

20.4. To the extent that any portion of this Purchase Order is not terminated under 20.1 or 20.2 above, Supplier will continue performing that portion.

21. Cessation of Production

If production of any Good is to be discontinued or suspended within 1 year after final delivery under this Purchase Order, Supplier must give Honeywell as much prior written notice as commercially reasonable of the discontinuance or suspension. For at least 180 days from the discontinuance or suspension, Supplier must accept orders from Honeywell for the Good at the price and on the terms of this Purchase Order.

22. General Indemnification

Supplier will, at its expense, defend, hold harmless and indemnify Honeywell and its customers, subsidiaries, affiliates, and agents, and their respective officers, directors, shareholders, and employees, (collectively "Indemnitees") from and against any and all loss, cost, damage, claim, demand, or liability, including reasonable attorney and professional fees and costs, and the cost of settlement, compromise, judgment, or verdict incurred by or demanded from the Indemnitee ("Loss") arising out of, resulting from or occurring in connection with Supplier's Goods or the performance of the Services by Supplier or its personnel (including any employment-related Loss arising out of, resulting from or occurring in connection with the performance), the acts, omissions, negligence or willful misconduct of Supplier or its personnel, Supplier's breach of the terms of this Purchase Order, or any theft or other misappropriation of Honeywell's or its personnel's information, property or funds by Supplier or its personnel. Supplier will not enter into any settlement or compromise without Honeywell's prior written consent, which will not be unreasonably withheld. If Honeywell is obligated to pay any Loss or any damages pursuant to its contract with a customer, then Supplier will be liable for such Loss any damages to the extent Supplier causes or contributes to such Loss or any damages. Nothing in this Section limits Honeywell's right to claim all actual damages sustained by Honeywell as a result of Supplier-caused delays.

23. Intellectual Property Indemnification

For Goods provided under this Purchase Order, Supplier will, at its expense, defend and indemnify Indemnitee from and against any and all loss, cost, expense, damage, claim, demand, or liability, including reasonable attorney and professional fees and costs, and the cost of settlement, compromise, judgment, or verdict incurred by or demanded from Indemnitee arising out of, resulting from, or occurring in connection with any alleged: (a) patent, copyright, or trademark infringement; (b) unlawful disclosure, use, or misappropriation of a trade secret; or (c) violation of any other third-party intellectual property right, and from expenses incurred by Indemnitee in defense of such suit, claim, or proceeding if Supplier does not undertake the defense thereof. Supplier will have the right to conduct the defense of any such claim or action and, consistent with Indemnitee's rights hereunder, all negotiations for its settlement. But in no event will Supplier enter into any settlement without Honeywell's prior written consent, which will not be unreasonably withheld. Indemnitee may participate in a defense or negotiations to protect its interests. If any injunction or restraining order is issued, Supplier will, at its expense, obtain for Indemnitee either the right to continue using and selling the Goods or replace or modify the Goods to make them noninfringing.

24. Insurance

Supplier will maintain and carry liability insurance in an amount no less than the greater of (a) the minimum amount required by applicable law, or (b) the following coverages: commercial general liability (including product liability and, for services to be performed, completed operations liability) in a sum no less than \$5 million, automobile liability in a sum no less than \$5 million, worker's compensation in an amount no less than the applicable statutory minimum requirement, and employer's liability in an amount of no less than \$5 million, all with insurance carriers with an AM Bests rating of no less than A- or equivalent. In addition, Supplier is responsible for maintaining an adequate level of insurance to cover any potential losses due to damage to Honeywell Property, as defined in Section 10. All insurance required by this Section must cover Honeywell, its subsidiaries and affiliates, and their respective officers, directors, shareholders, employees and agents as additional insureds. Before delivery of any Goods or commencement of any services under the Purchase Order, Supplier will provide to Honeywell evidence that Seller maintains the described insurance, and that the coverage will not be changed without 30 days advance written notification to Honeywell from the carrier(s). Except where prohibited by law, Supplier will require its insurers to waive all rights of recovery or subrogation against Honeywell, its subsidiaries and affiliated companies, and its and their respective officers, directors, shareholders, employees, and agents. The amount of insurance carried in compliance with the above requirements is not to be construed as either a limitation on or satisfaction of the indemnification obligation in this Purchase Order.

25. Lien Waivers

Supplier will furnish, upon Honeywell's request, waivers by Supplier and all other persons entitled to assert any lien rights in connection with the performance of this Purchase Order and will indemnify Honeywell against all costs, loss or liability incurred by Honeywell as a result of any failure by Supplier or any other person to comply with this provision.

26. Confidentiality; Intellectual Property; Data Protection

26.1. All information, including without limitation specifications, samples, drawings, materials, know-how, designs, processes, and other technical, business, or financial information, that: (a) has been or will be supplied to Supplier by or on behalf of Honeywell; or (b) Supplier will design, develop, or create in connection with this Purchase Order; as to individual items or a combination of components or both, and whether or not completed, and all derivatives of (a) and (b) that Supplier has or will design, develop or create are deemed to be "Confidential Information" of Honeywell. All Confidential Information is work made for hire and made in the course of services rendered. All rights to it belong exclusively to Honeywell, with Honeywell having the sole right to obtain, hold, and renew, in its own name or for its own benefit, patents, copyrights, registrations, or other appropriate protection. To the extent that exclusive title or ownership rights in Confidential Information may not originally vest in Honeywell, Seller irrevocably assigns transfers and conveys to Honeywell all right, title, and interest therein.

26.2. Honeywell's Confidential Information will remain the property of Honeywell. It may not be used by Supplier for any purpose other than for performing this Purchase Order, may not be disclosed to any third party, and will be returned to Honeywell upon the earlier of Honeywell's written request or completion of the Purchase Order. If, with Honeywell's prior written approval, Supplier furnishes Confidential Information to a sub-tier supplier, Supplier will bind the sub-tier supplier to confidentiality requirements substantially identical to this provision and Supplier will remain responsible to Honeywell for any breach of this provision by its sub-tier suppliers. No disclosure, description or other communication of any sort will be made by Supplier to any third person of the fact of Honeywell's purchase of Goods hereunder, the terms of this Purchase Order, the substance of any discussions or negotiations concerning this Purchase Order, or either party's performance under this Purchase Order.

26.3. Data Privacy. Supplier will comply with Honeywell's Data Privacy Obligations for Suppliers posted at <https://www.honeywell.com/who-we-are/integrity-and-compliance>

26.4. Data Rights. Without limiting any other rights or restrictions the parties might have under this Purchase Order, Supplier hereby grants Honeywell access and the perpetual, irrevocable, non-exclusive, worldwide, full-paid up right and license to retain, use, copy, disclose, prepare derivative works of, modify, monetize and otherwise exploit for any purpose (collectively "Use"). "Data" as used in this section means any and all data, output from and the forms/media in which such output is gathered; input to, generated by or otherwise accessible through, the Goods.

27. Audit

27.1. Supplier will maintain detailed records reflecting Supplier's compliance with this Purchase Order for at least 10 years from the date of last delivery. Supplier will provide, and will cause each of its sub-tier suppliers to provide, access for Honeywell's personnel, auditors, all regulatory authorities and Honeywell's customers to have access at all reasonable times to facilities, books and other pertinent records and any other information as requested by Honeywell or Honeywell's auditors.

27.2. If any invoice submitted by Supplier is found to be in error, an appropriate adjustment will be made to the invoice or the next succeeding invoice following the discovery of the error and the resulting payment/credit will be issued promptly. Supplier will, and will cause its sub-tier suppliers to, promptly correct any other Supplier deficiencies discovered as a result of the audit.

28. Assignment and Subcontracting

This Purchase Order will be binding on the parties and their respective permitted successors and assigns. Supplier will not assign this Purchase Order or any rights or obligations under this Purchase Order or subcontract the manufacture of the Goods or performance of any related services without the prior written approval of Honeywell. Any transfer of this Purchase Order by Supplier by merger, consolidation, or dissolution, or any change in ownership or power to vote a controlling share of the voting stock in Supplier, will constitute an assignment for the purpose of this Purchase Order. Any assignment or subcontract without Honeywell's written approval will be voidable at the option of Honeywell. Honeywell may assign this Purchase Order or any rights or obligations under this Purchase Order to any of its subsidiaries or affiliates or to any purchaser or successor to all or substantially all of the assets of Honeywell without Supplier's consent and upon written notice to Supplier. To the extent Supplier assigns or subcontracts all or part of the manufacture of the Goods or performance of any related services as permitted under this Purchase Order, Supplier will be responsible for its assignees and subcontractors (including but not limited to its affiliates) and their personnel to the same extent as if the acts or omissions were performed by Supplier and its employees, agents and personnel.

29. Relationship of Parties/Independent Contractor

Nothing in this Purchase Order will be construed to place Supplier and Honeywell in an agency, employment, franchise, joint venture, or partnership relationship. Neither party has the authority to obligate or bind the other in any manner, and nothing contained in this Purchase Order will give rise or is intended to give rise to rights of any kind to any third parties. Neither party will make any representation to the contrary. The parties agree that Supplier will perform its obligations under this Purchase Order as an independent contractor. Supplier will be solely responsible for all Employer Obligations with respect to Supplier personnel, even if a court or other body deems the personnel to be Honeywell employees. "Employer Obligations" means all obligations of any kind imposed customarily or by law or agreement on persons acting in the capacity of an employer, including, without limitation, responsibility for (a) hiring, assigning, compensating, and terminating personnel; (b) withholding and paying taxes; (c) verification of employment eligibility, including compliance with work authorization and immigration laws and export licensing and control requirements; (d) compliance with all federal, state, and local laws (both common and statutory) and regulations related to employment and the rights of personnel. Supplier represents and warrants that it and all its subcontractors, if any, comply and will continue to comply with all applicable employment laws and regulations related to personnel working on Honeywell matters, that all personnel working on Honeywell matters are authorized to work in the relevant jurisdiction, and that it does not employ child or forced labor.

For any Goods provided under this Purchase Order in jurisdictions with statutory employer protections, Supplier and Honeywell stipulate that Honeywell is deemed to be the statutory employer of Supplier's employees and all employees of any sub-tier contractor retained in any manner by Supplier, who perform services or access Honeywell's property and such status is limited to the period in which the preceding actions occur. Supplier and Honeywell further stipulate that all services performed pursuant to this Purchase Order are an integral part of or essential to Honeywell's production of its goods or delivery of its services.

30. Compliance with Laws and Integrity

TERMS AND CONDITIONS

30.1. Supplier will comply with all laws, orders, rules, regulations and ordinances and Honeywell's Supplier Code of Business Conduct ("Code") in performing this Purchase Order. A copy of the Code may be obtained at <http://hwl.co/CodeOfConduct>. Supplier agrees to abide by the Code and maintain an integrity and compliance program that encompasses at a minimum the standards of business conduct set forth in the Code and that effectively prevents and corrects ethical violations and maintains compliance with laws. Supplier and its employees, agents, representatives and subcontractors have not made or received, and will not make or receive, directly or indirectly, any payments, loans, gifts, favors or other special consideration or form of compensation (a) to or from Honeywell, to its employees, agents or representatives, other than payments set forth in this Purchase Order or other written contractual agreement between Supplier and Honeywell; or (b) to or from any third party for the purpose of influencing the performance by Supplier or Honeywell of its respective duties hereunder. Supplier warrants it has and will comply with the U.S. Foreign Corrupt Practices Act, UK Bribery Act, EU and similar anti-bribery legislation or requirements. A breach of this provision will be deemed a material breach of this Purchase Order and grounds for termination of this Purchase Order.

Supplier will indemnify and hold harmless Honeywell from and against any and all loss, cost, expense (including reasonable attorney and professional fees), claims, damage, or liability arising out of or resulting from or occurring in connection with Supplier's breach of this Section.

Supplier must have a management system dedicated to compliance with applicable environmental, health and safety laws and regulations to ensure a safe working environment for their employees and responsible care of materials to prevent a negative impact on the environment (for example: ISO14001:2004/OHAS 18001:2007).

30.2. Upon request, in form and substance satisfactory to enable Honeywell to meet its compliance obligations with regard to Regulation (EC) No 1907/2006 ("REACH"), Supplier will provide Honeywell with complete information regarding the chemical composition of any Goods supplied under this Purchase Order, including all safety information required under REACH and information regarding the registration or pre-registration status of any Deliverables pursuant to REACH. Supplier agrees that it will include any Honeywell "Identified Use" in its REACH registrations or applications for Authorization, unless Supplier notifies Honeywell that it rejects the Identified Use in order to protect human health or the environment and specifies the reason for the rejection. In this case Honeywell will have the right to terminate this Purchase Order without incurring any damages.

30.3. Absent Honeywell's prior written consent, no Goods will contain any of the substances identified in European Parliament Directive 2011/65/EU or in Article 4.1 of the European Parliament Directive 2002/95/EC (collectively, the "RoHS Directives") as the RoHS Directives are updated from time to time and as any such Directive is implemented in any country, or similar applicable laws or regulations, restricting the use of hazardous materials in other jurisdictions.

30.4. Goods will comply with the restrictions set forth in the Montreal Protocol on ozone-depleting substances.

30.5. Supplier will be responsible for all costs and liabilities for or relating to the recycling of Goods pursuant to the most current version of European Parliament Directive 2002/96/EC and the most current version of European Parliament Directive 2012/19/EU (the "WEEE Directives") as the WEEE Directives are updated from time to time and as any such Directive is implemented in any country.

30.6 To the extent employment activities of Supplier occur in the United States and if otherwise applicable this contractor and subcontractor shall abide by the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a). These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, and prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity or national origin. Moreover, these regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity national origin, disability or veteran status.

30.6. In accordance with applicable "Conflict Minerals" laws, Honeywell must determine whether its products contain tin, tantalum, tungsten or gold ("3TG") originating in the Democratic Republic of the Congo and adjoining countries ("Conflict Minerals"). To the extent Supplier supplies Goods containing 3TG to Honeywell under any Purchase Order, Supplier commits to have a supply chain process to ensure and document a reasonable inquiry into the country of origin of the 3TG minerals incorporated into such Goods. If requested, Supplier will promptly provide information or representations that Honeywell reasonably believes are required to meet its conflict minerals compliance obligations.

31. Applicable Law and Forum

31.1. United States

If Honeywell is a legal entity formed in the United States, then the construction, interpretation, and performance hereof and all transactions hereunder will be governed by the laws of the State of New York, U.S.A. without regard to or application of its principles or laws regarding conflicts of laws, and excluding the United Nations Convention on the International Sale of Goods of 1980 (and any amendments or successors thereto), and the federal or state courts in New York, New York will have exclusive jurisdiction of any dispute.

31.2. Asia Pacific

If Honeywell is a legal entity formed in an Asia Pacific country, then the construction, interpretation, and performance hereof and all transactions hereunder will be governed by the laws of the country under which the Honeywell entity is formed, excluding the UN Convention on Contracts for the International Sale of Goods of 1980 (and any amendments or successors thereto), and the courts of that country will have exclusive jurisdiction of any dispute except for the following locations where and any dispute arising out of or relating to this Purchase Order, including the breach, termination or validity thereof, will be finally resolved in accordance with the rules of arbitration as noted below. Judgment upon the award rendered by the arbitrators may be entered by any court having jurisdiction thereof. The place of arbitration and the language of arbitration will be selected by Honeywell.

" China - in accordance with the arbitration rules of the China International Economic and Trade Arbitration Commission

" India - in accordance with the arbitration rules of the Indian Arbitration and Conciliation Act

1996

" Singapore, Indonesia, Vietnam, Australia, and New Zealand - in accordance with the arbitration rules of the Singapore International Arbitration Center

" Korea - in accordance with the arbitration rules of the Korean Commercial Arbitration Board

" Hong Kong - in accordance with the arbitration rules of the Hong Kong International Arbitration Center

" Malaysia - in accordance with the arbitration rules of the Kuala Lumpur Regional Arbitration Centre

" Taiwan - in accordance with the arbitration rules of the local Arbitration Act

Either party may apply to the arbitrator seeking injunctive relief until the arbitration award is rendered or the controversy is otherwise resolved. Either party may also, without waiving any remedy under this Purchase Order, seek from any court having jurisdiction any interim or provisional relief that is necessary to protect the rights or property of that party, pending the arbitrator's determination of the merits of the controversy.

31.3. Europe, Middle East, and Africa

If Honeywell is a legal entity formed in a European, Middle Eastern or African country or formed in a country not identified above, then the construction, interpretation, performance and enforcement hereof and all transactions hereunder and the parties relationship in connection therewith or any related claims whether founded in contract, tort or otherwise, will be governed by the laws of laws of England and Wales, without regard to or application of its principles or laws regarding conflicts of laws, and excluding the UN Convention on Contracts for the International Sale of Goods of 1980 (and any amendments or successors thereto) if applicable in such country. Any dispute arising out of or relating to this Purchase Order, including the breach, termination or validity thereof, will be finally resolved by a panel of three arbitrators in accordance with the Rules for Arbitration of the International Chamber of Commerce. Judgment upon the award rendered by the arbitrators may be entered by any court having jurisdiction thereof. The place of arbitration be London, England and the language of arbitration will be English.

31.4 Additional rules applicable to Arbitration: Any award will be payable in the currency of this Purchase Order. Either party may apply to the arbitrators seeking injunctive relief until the arbitration award is rendered or the controversy is otherwise resolved. Either party also may, without waiving any remedy under this Purchase Order, seek from any court having jurisdiction any interim or provisional relief that is necessary to protect the rights or property of that party, pending the arbitrators' determination of the merits of the controversy. The language of the arbitration will be English.

32. Remedies

All Honeywell remedies set forth in this Purchase Order are in addition to, and will in no way limit, any other rights and remedies that may be available to Honeywell at law or in equity.

33. Notices

Notices relating to this Purchase Order must be in writing and may be delivered personally, by overnight courier, or by certified first class mail, postage prepaid (each to the respective addresses appearing on the face of this Purchase Order; sent by fax to the respective fax number provided by Honeywell or Supplier; or sent by electronic mail with proof of delivery to the respective electronic address provided by Honeywell or Supplier. Notice will be deemed given on the date delivered if delivered personally; three business days after being placed in the mail as specified above; or upon confirmation receipt that it was transmitted satisfactorily if transmitted by fax or electronic mail.

34. Publicity

Any news release, public announcement, advertisement, publicity or any other disclosure concerning this Purchase Order to any third party except as may be necessary to comply with other obligations stated in this Purchase Order requires prior written approval of Honeywell. Supplier will not use Honeywell's name or marks or refer to or identify Honeywell in any advertising or publicity releases or promotional or marketing materials without Honeywell's prior written approval. Furthermore, Supplier will not claim or suggest, implicitly or explicitly, that Honeywell's use of its services or deliverables constitutes Honeywell's endorsement of its services or deliverables.

35. Headings and Captions

Headings and captions are for convenience of reference only and do not alter the meaning or interpretation of any provision of this Purchase Order.

36. Non-Exclusivity / No Commitment

Nothing in this Purchase Order will restrict Honeywell's right to contract with any third party to provide or perform, or to provide or perform on its own behalf, products or services similar or identical to the Goods provided by Supplier pursuant to this Purchase Order. Furthermore, there is no requirement that any minimum level of business or fees be provided to Supplier by Honeywell.

37. Waiver

The failure of either party to enforce at any time any of the provisions of this Purchase Order will not be construed to be a continuing waiver of those provisions, nor will any such failure prejudice the right of the party to take any action in the future to enforce any provision.

38. Severability

If any provision of this Purchase Order is held to be illegal, invalid, or unenforceable by a court of competent jurisdiction, that provision will be severed from this Purchase Order; the remaining provisions will remain in full force and effect; and a similar legal, valid and enforceable provision will be substituted in lieu of the severed provision.

39. Supply Chain Security

Supplier will implement the Business Partner Criteria of any Supply Chain Security Program that the country of import for the Goods may adopt such as the U.S. Customs-Trade Partnership Against Terrorism (C-TPAT) or the Canadian Partners in Protection (PIP) Program.

40. Survival

All provisions of this Purchase Order which by their nature should apply beyond its term will remain in force after any termination or expiration of this Purchase Order including, but not limited to, those addressing the following subjects: Import/Customs Compliance; Drawback; Offset; Honeywell-Supplied Materials, Tooling, Equipment and Technical Data; Price, Price: Most Favored Customer and Meet or Release, Invoicing and Payment, Set Off, Warranty, Cessation of Production, General Indemnification, Intellectual Property Indemnification, Insurance, Confidentiality and Intellectual Property, Audit, Relationship Between the Parties/Independent Contractor; Applicable Law and Forum, Publicity, Waiver and Survival.

41. Translations.

Translations in various languages of these General Terms and Conditions of Purchase may be available for reference. In case of inconsistencies between translations and the original English version, the English version shall prevail.